**IN THE FIFTH DISTRICT COURT OF APPEAL**
**STATE OF FLORIDA**

**Case No. 5D2024-2407**

Angel E. Gaston,
*Appellant,*

*v.*

Lifestream Behavioral Center, Inc.,
*Appellee.*

On Appeal from the Fifth Judicial Circuit in and for Lake County, Florida
L.T. No. 2023-CA-2188

# AMICUS CURIAE BRIEF OF THE FLORIDA ASSOCIATION OF COURT CLERKS

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## STATEMENT OF INTEREST

The Florida Association of Court Clerks, Inc., d/b/a Florida Court Clerks & Comptrollers (the "Association"), files this amicus curiae brief in accordance with the Court's January 22, 2026, Order requesting the Association to file an amicus brief addressing two issues:

> "(1) what actions Florida clerks of court take, including but not limited to the issuance of summons and effectuation of service of process, when an indigent prisoner endeavors to file a civil action and (2) the basis in law for such actions...."

Order of January 22, 2026, at 1.

## SUMMARY OF ARGUMENT

Clerks issue summonses, but do not prepare them, except to the limited extent of providing clerical help. Under Florida law, an indigent plaintiff who files a civil complaint is obligated to prepare a summons for each defendant and provide it to the clerk. This obligation is not negated because the plaintiff is incarcerated; preparation of a summons constitutes the practice of law, from which the clerk is prohibited, and errors in drafting (e.g., selecting a

wrong address or service recipient) or transmission to the clerk can result in significant consequences, including dismissal.

If properly prepared, the clerk issues the summons and makes it available for the Sheriff or private process servers, who then effectuate service of process. Clerks are not involved in effectuation of service of process except that the summonses are issued and made available to sheriffs or process servers (or parties themselves, for provision to sheriffs or process servers) for service.

## ARGUMENT

In sum: with respect to indigent prisoner civil actions, clerks make an initial determination of indigence pursuant to section 57.085, Florida Statutes,[1] and thereafter provide all of the services required of clerks by law. One of those services is the *issuance*—not *preparation*—of summonses, although clerks may provide limited clerical assistance. The party seeking issuance of the summons must provide a completed summons to the clerk and, following the clerk's issuance, the party must effectuate service, usually through

[1] All references to "section" or "Chapter" are to the Florida Statutes (2025) unless otherwise noted.

a Sheriff or a private process server. Clerks are not involved in effectuating service of process, except in very limited circumstances (described below).

The services in question in the instant case are provided by Clerks or Sheriffs despite an indigent person's current inability to prepay for such services.

## I. FLORIDA INDIGENCY STATUTES

Florida law has four separate indigency statutes to which a clerk must refer on a regular basis: sections 27.52, 57.081, 57.082, and 57.085. Section 27.52 pertains to indigence determinations for the appointment of the public defender and other assistance during a criminal proceeding and does not appear to be germane to the Court's inquiry.

### *A. The Indigency Statute, Section 57.081*

Section 57.081 ("Costs; right to proceed where prepayment of costs and payment of filing fees waived"), provides for "the services of the courts, sheriffs, and clerks" to be provided to indigent persons "despite" their inability to pay—with three limitations. First,

the statute does not apply to "prisoners" as defined in section 57.085. Second, the services are

> *limited to* filing fees; *service of process*; certified copies of orders or final judgments; a single photocopy of any court pleading, record, or instrument filed with the clerk; examining fees; mediation services and fees; private court-appointed counsel fees; subpoena fees and services; service charges for collecting and disbursing funds; and any other cost or service arising out of pending litigation.

§ 57.081(1) (emphasis added). And third, an indigent party, as certified under section 27.52 or 57.082, is not required to prepay the costs for such services to a court, a clerk, or a sheriff, and is not required to pay filing fees or charges for the issuance of a summons:

> A party who has obtained a certification of indigence pursuant to s. 27.52 or s. 57.082 with respect to a proceeding is not required to prepay costs to a court, clerk, or sheriff and is not required to pay filing fees or charges for *issuance* of a summons.

§ 57.081(2) (emphasis added).

### *B. The Prisoner Indigency Statute, Section 57.085*

For prisoners wishing to intervene in or initiate a judicial proceeding, other than a collateral criminal matter, section 57.085 applies, not section 57.081. Under section 57.085, the prisoner's ability and obligation to pay is vetted differently than a person not in custody (the indigency determination of whom is set forth in section 57.082), the asset disclosure is more robust, and an obligation to repay remains. In indigent prisoner submissions, the clerk must review the prisoner's affidavit of assets and determine whether the prisoner is indigent; if so, the court must first review the prisoner's claim to determine if the prisoner may proceed. See § 57.085(6)-(7). If allowed to proceed, the indigent prisoner's prepayment of court costs and fees is deferred. Additionally, an indigent prisoner must make an initial partial payment and be ordered to "to make monthly payments of no less than 20 percent of the balance of the prisoner's trust account as payment of court costs and fees." § 57.085(5). Those payments are to be made "to the appropriate clerk…until the prisoner's court costs and fees are paid in full." *Id.*

## II. SERVICES OF THE CLERKS

While clerks provide many services, and therefore take many actions in fulfilling those services, the Court's inquiry is directed at "what actions Florida clerks of court take, including but not limited to the issuance of summons and effectuation of service of process, when an indigent prisoner endeavors to file a civil action." Order of January 22, 2026, at 1. With this in mind, the comments herein are limited to the actions taken by clerks upon the attempt of a prisoner to file and pursue a civil action (that is not a collateral criminal proceeding) and presumes the prisoner has filed the action and the appropriate affidavit of indigence.

### *A. Determination of Indigence*

Upon the filing of a civil suit with an appropriate affidavit of indigence, a clerk must determine whether the prisoner is indigent pursuant to section 57.085. If so, a clerk must then determine if the prisoner has the ability to pay part of the court costs and fees required by law. If the prisoner is determined to have the ability to pay part of the court costs and fees, the court must order the prisoner to pay—prior to the service of process—an initial payment

from the prisoner's trust account in an amount equal to 20 percent of the average balance of that account for the preceding 6 months. The court must also order the prisoner to pay monthly payments for the court costs and fees of an amount not less than 20 percent of the balance of that account. A clerk may be involved following the entry of the orders, if the clerk sends notice of such orders to the Department of Corrections.

### *B. Actions Relating to the Preparation, Issuance, and Service of Summons*

For litigants, the next task to be completed for a civil case is to proceed with the service of the initial process and initial pleading on the defendant(s). In order to accomplish this task, the litigant must provide the clerk with the summons to be issued. Section 28.241(d) addresses issuance of summonses, but only to provide that clerks "shall" collect a $10 service charge. Nothing in the statute suggests clerks shall or may become involved in preparing summonses—for good reason. As the Court knows, the preparation of a summons must be done carefully and correctly, especially if a complex corporate entity is sued, at the peril of failed service. A clerk is not

in a position to deduce the location of a party for purposes of service, or which persons are required for effective service to bind a person or entity under the various provisions of Chapter 48. Failed service can result in dismissal or even loss of claims by operation of statutes of limitations.

Preparation of a summons for service of process in Florida, other than typing or writing the information onto a page at the customer's direction pursuant to Small Claims Rule 7.050(c), constitutes the practice of law (a third-degree felony). *See The Fla. Bar v. Miravalle*, 761 So. 2d 1049, 1051 (Fla. 2000) ("This Court has repeatedly held that the preparation of legal documents by a nonlawyer for another person to a greater extent than typing or writing information provided by the customer on a form constitutes the unlicensed practice of law."); *and see* § 454.18 ("No sheriff or clerk of court, or full-time deputy thereof shall practice in this state"). In *Al-Hakim v. State*, 783 So. 2d 293 (Fla. 5th DCA 2001), Judge Peterson, of this Court, succinctly described the respective roles of the clerk and the mandamus-petitioning prisoner in a specially concurring opinion. The petitioning prisoner

> ha[d] not submitted to the clerk of the court a summons and copy of his complaint so that the clerk can issue the summons, and then deliver it to the sheriff for service. *Preparation of the summons with a copy of the complaint attached is the burden of the petitioner, not the clerk.*

*Id. at 295* (emphasis added).

Clerks simply issue summonses pursuant to Rule 1.070(a) ("On the commencement of the action, summons or other process authorized by law must be promptly issued by the clerk or judge under the clerk's or the judge's signature and the seal of the court and delivered for service"). Typically, Clerks then make the summons and complaint available for pickup, deliver them to the sheriff if the filer has elected to have the sheriff serve them, or mail them to the filer so that the filer can take any appropriate next steps, whether through the Sheriff or an authorized process server.

If a summons is never provided to the clerk for issuance, service will not be effectuated, the time for service of the initial process will expire, and the court will determine whether the case should be dismissed or whether to extend the time for service. This same result occurs if a summons is provided and issued and service is not timely made.

If service of process is effectuated, the clerk may be asked to enter a clerk's default against the person or entity served. In that event, the clerk would determine whether proof of such service is on file in the case, and whether any paper has been filed by the person or entity named therein. If no such paper has been filed, the clerk may enter a default.

Florida Rule of Civil Procedure 1.070 is the procedural guideline for most, if not all, service of process. That rule confirms that clerks are not involved in effectuation of service of process except that summonses must be issued by clerks (or courts) and then "delivered for service." Consequently, another entity must "receive" the summons for service. That entity is ordinarily the sheriff. Section 48.011 directs that all summonses "shall be directed to…the sheriffs," and section 48.021(1) requires that "[a]ll process shall be served by the sheriff," but allows civil process, as is the case herein, to be served by a special process server appointed by the sheriff or a certified process server as provided in section 48.27. The clerks' only role with respect thereto is to maintain a local list of authorized process servers. See § 48.29(1). Further,

section 57.081(2) provides that sheriffs may seek reimbursement from county funds for the "actual expense" of "automotive fuel or ordinary carfare"—"in serving process." Therefore, the indigent-services statute itself clearly reflects the fact that under Florida law, sheriffs, not clerks, serve process.

There are two instances, however, in which a clerk is routinely involved in the service of process. Neither is applicable here. First, Small Claims Rule 7.070 provides for service on Florida residents in small claims cases to be effectuated by certified mail, return receipt requested. This mailing may be accomplished either by the attorney of record or the clerk. Second, clerks often mail a copy of the summons and complaint in actions for possession of premises under section 48.183 and in actions for removal of unknown parties in possession under section 48.184, supplemental to service also being effectuated under Rule 1.070. The only clerk-alone forms of service of process under Chapter 48 are for signed-receipt mailings sent by clerks to out-of-state parties in actions under the Florida International Commercial Arbitration Act (see § 48.196(2)(c)5) or in

other actions where process is to be served on a defendant in a foreign country (see § 48.197(1)(b)3.b).

The Court also instructed that amicus briefs in this matter "should include discussion of the manner in which effectuation of service of process on behalf of indigent prisoners is made, including when defendants are unnamed or outside the jurisdictional limits of the circuit in which the clerk of court is located." Order of January 22, 2026, at 1. As noted above, the clerk's role in effectuation of service of process is limited to issuing the process and making it available "for service" (Rule 1.070(a)); the plain language of the Rule does not make that role different if the defendants are unnamed or outside the forum court's jurisdiction.

The authority discussed above is unambiguous in assigning the clerk's and the sheriff's roles with respect to issuance of summonses and service of process, and just as clear that a party prepares its own summons (with the aid of Florida Rules of Civil Procedure Forms 1.902 ("Summons"), 1.903 ("Crossclaim Summons"), and 1.904 ("Third-Party Summons")). And under Florida's plain-language rule, unambiguous statutory language is to

be given its plain meaning without resort to other rules of construction. *See, e.g.*, *Halifax Hosp. Med. Ctr. v. State*, 278 So. 3d 545, 547 (Fla. 2019) ("A court's determination of the meaning of a statute begins with the language of the statute. If that language is clear, the statute is given its plain meaning, and the court does not 'look behind the statute's plain language for legislative intent or resort to rules of statutory construction.'") (citations omitted).

### *C. Subsequent Actions*

After process is served, the clerk's required actions are the same for any civil litigant as mandated by statute or rule. The most basic responsibility is the filing of all eligible documents into the court file. Other routine duties depend upon the nature of the case and include, but are not limited to, attending hearings, maintaining evidence, maintaining the registry of the court, issuing writs, and conducting judicial sales.

## CONCLUSION

Pursuant to applicable statutes and rules, clerks determine indigent status, and issue, but do not prepare, summonses. Clerks'

only role (with limited exceptions as described above) in effectuating service of process is to make issued summonses available to the parties, or to sheriffs or private process servers. Thereafter, clerks provide all services required by law irrespective of the litigant's custody or indigence status.

The Association appreciates the Court's opportunity to address the Court on this important question.

Respectfully submitted,

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## CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this March 13, 2026, a true and correct copy of the foregoing was e-filed and served to all counsel/ parties of record, and a copy mailed to:

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## CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that this brief complies with the typeface and type style requirements of Florida Rules of Appellate Procedure 9.045(b) and 9.370(b). This brief uses Bookman Old Style 14-point typeface and contains not more than 5,000 words.

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